

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Notice to Parent or Guardian

TAKE NOTICE that the Applicant will make an application to the Supreme Court of Nova Scotia (Family Division) for a secure-treatment order pursuant to section 56(1) of the *Children and Family Services Act*, in respect of the child, [full name, birthdate].

[OR]

TAKE NOTICE that the Applicant will make an application to the Supreme Court of Nova Scotia (Family Division) for renewal of a secure-treatment order granted on [date], 20 , pursuant to section 56(4) of the *Children and Family Services Act*, in respect of the child, [full name, birthdate].

[OR]

TAKE NOTICE that the [Applicant/Respondent, [name]/Third Party, [name]] will make an application to the Supreme Court of Nova Scotia (Family Division) for review of a secure-treatment order granted on [date], 20 , pursuant to section 57(1) of the *Children and Family Services Act*, in respect of the child, [full name, birthdate].

AND TAKE NOTICE that the hearing will take place at the Supreme Court of Nova Scotia (Family Division), [located at 540 Prince Street, Truro, Nova Scotia/[other designated court facility]] on [date], 20 , at [a.m./p.m.], or so soon thereafter as the application can be heard.

AND TAKE NOTICE that you are being given notice of the hearing pursuant to section [56(2A)/57(1B)] of the *Children and Family Services Act*, which provides as follows:

56(2A) Where the child who is the subject of an application is not a child in permanent care and custody, the Minister shall notify the child's parent or guardian of the proceeding.

[OR]

57(1B) Where the child who is the subject of an application for review is not a child in permanent care and custody, the applicant shall notify the child's parent or guardian of the proceeding if the parent or guardian is not already a party to the application for review.

AND TAKE NOTICE that you have the right to apply to be added as a party to the proceeding, pursuant to section [56(2B)/57(1C)] of the *Children and Family Services Act* which provides as follows:

56(2B) Where the child who is the subject of an application is not a child in permanent care and custody, the court may, upon application by the parent or guardian of the child, add the parent or guardian as a party to the proceeding.

[OR]

57(1C) Where the child who is the subject of an application for review is not a child in permanent care and custody, the court may, upon application by a parent or guardian of the child, add the parent or guardian as a party to the proceeding.

AND TAKE NOTICE that should you fail to appear, an order may be made in your absence without further notice to you.

DATED at , Nova Scotia, [date], 20 .

Counsel for the Applicant,
[insert name, address and telephone/fax number]

To: Supreme Court of Nova Scotia (Family Division)

And to: Parent or guardian of the child

TAKE NOTICE: Sharing identifying information, including copies of documents, from this proceeding verbally, in writing or through the Internet, including through social media such as Facebook, Snapchat or Instagram, is an offence under s. 94(1) of the *Children and Family Services Act*, punishable by a fine of up to \$10,000 and imprisonment for 2 years.

